

DIGITAL TRANSFORMATION FRAMEWORK AGREEMENT

Contract Reference: ACP-2024-0303 | Date: June 15, 2024

PREAMBLE

This Framework Agreement establishes the terms and conditions governing a comprehensive multi-year digital transformation program. The parties acknowledge that digital transformation requires deep organizational change, technology modernization, and capability building, and that success depends on sustained commitment from both parties at the highest executive levels.

This agreement supersedes all prior discussions, proposals, and correspondence between the parties regarding digital transformation services.

ARTICLE 1 — PARTIES AND REPRESENTATIVES

Prime Contractor: ACP Consulting Group SAS, 15 Rue de la Paix, 75001 Paris, France, SIRET 123 456 789 00012, represented by Mr. Jean-Pierre Martin, Chief Executive Officer, and Ms. Claire Fontaine, Chief Delivery Officer.

Client: BankAfrica Group SA, 1 Place de la Finance, 75008 Paris, France, SIRET 222 333 444 00055, represented by Mr. Abdellah Rachidi, Chief Executive Officer, and Mr. Thomas Leblanc, Chief Information Officer.

Steering Committee: Both parties agree to establish a joint Steering Committee meeting monthly, comprising 3 senior representatives from each party with authority to approve changes up to EUR 500,000.

ARTICLE 2 — SCOPE OF TRANSFORMATION PROGRAM

The Digital Transformation Program covers the following strategic workstreams:

Workstream 1 — Core Banking Modernization: Migration from legacy COBOL systems to modern microservices architecture. Full re-platforming of 14 core banking modules. Implementation of real-time transaction processing capability.

Workstream 2 — Data Platform and Analytics: Construction of a cloud-native data lake on Azure. Implementation of real-time analytics dashboards for risk, compliance, and commercial performance. AI-powered fraud detection system replacing rule-based legacy system.

Workstream 3 — Customer Experience Transformation: Full redesign of mobile and web banking applications. Implementation of omnichannel CRM platform. AI chatbot for customer service handling 60% of tier-1 inquiries.

Workstream 4 — Cybersecurity and Compliance: Zero-trust security architecture implementation. DORA compliance framework (Digital Operational Resilience Act). ISO 27001 certification support.

Workstream 5 — Organizational Transformation: Agile at Scale (SAFe) methodology adoption. Digital skills academy for 800 employees. Change management program.

ARTICLE 3 — PROGRAM DURATION AND TIMELINE

Total Program Duration: 36 months from July 1, 2024 to June 30, 2027.

Year 1 (July 2024 - June 2025) — Foundation: Architecture design, team setup, agile transformation launch, data platform foundation, security baseline assessment.

Year 2 (July 2025 - June 2026) — Build: Core banking module migration (phases 1-3), data lake go-live, new mobile app launch, fraud detection system deployment.

Year 3 (July 2026 - June 2027) — Scale and Optimize: Remaining core banking modules, full CRM deployment, AI chatbot rollout, DORA compliance certification, organizational embedding.

ARTICLE 4 — FINANCIAL FRAMEWORK

Total Program Budget: EUR 4,200,000 excluding VAT.

Year 1 Budget: EUR 1,200,000

— Q3 2024: EUR 300,000 (program setup, architecture design)

— Q4 2024: EUR 300,000 (foundation delivery)

— Q1 2025: EUR 300,000 (agile transformation, security baseline)

— Q2 2025: EUR 300,000 (Year 1 closure and Year 2 planning)

Year 2 Budget: EUR 1,800,000 (detailed in Annex B)

Year 3 Budget: EUR 1,200,000 (detailed in Annex C)

Annual budgets are subject to review and adjustment at each year-end based on program progress and business priorities. Adjustments exceeding 15% require Steering Committee approval.

Payment Terms: Monthly invoicing based on actual deliverables and resource consumption. Payment due within 30 days. Disputed invoices must be raised within 10 days of receipt.

ARTICLE 5 — TEAM STRUCTURE AND GOVERNANCE

ACP Consulting Team: Program Director (full-time), 2 Workstream Leads (full-time), 8 Senior Consultants (full-time), 4 Technical Architects (full-time), 3 Change Management Specialists (part-time), 2 Cybersecurity Experts (part-time), 1 PMO Manager (full-time).

Client Team: Program Sponsor (CIO), 5 Business Owners (one per workstream), dedicated IT team of 15 engineers, HR Business Partner for organizational change.

Governance Structure: Weekly delivery team meetings, bi-weekly workstream reviews, monthly Steering Committee, quarterly Executive Reviews with CEO/CIO level participation.

ARTICLE 6 — OBLIGATIONS OF THE PRIME CONTRACTOR

ACP Consulting Group undertakes to: maintain a dedicated program team throughout the engagement without key personnel changes exceeding 20% per year without Client approval; deliver all workstreams according to agreed roadmaps with maximum 10% schedule variance; provide weekly progress dashboards accessible to Client leadership; maintain a risk register updated weekly; conduct formal quality reviews at each phase gate; ensure all consultants hold relevant certifications; provide knowledge transfer to ensure Client self-sufficiency by program end; maintain professional indemnity insurance of minimum EUR 10,000,000.

ARTICLE 7 — OBLIGATIONS OF THE CLIENT

BankAfrica Group undertakes to: make key decision-makers available within 48 hours for critical decisions; provide timely access to all systems, data, and personnel required; ensure infrastructure investments are made on schedule as per Annex D; designate empowered business owners for each workstream; make payments strictly according to the agreed schedule; not poach ACP Consulting staff during the program and for 12 months post-completion; provide a dedicated workspace for the consulting team at headquarters.

ARTICLE 8 — TECHNOLOGY AND VENDOR MANAGEMENT

ACP Consulting Group acts as prime contractor and is responsible for coordination of all technology vendors. Approved vendors are listed in Annex E. Any new vendor introduction requires 30 days notice and Client approval.

The Client retains the right to approve all technology selections above EUR 100,000 in licensing value. ACP Consulting Group will negotiate vendor contracts on behalf of the Client but in the Client's name.

ARTICLE 9 — DATA PROTECTION AND SECURITY

Both parties shall comply with GDPR and all applicable banking regulations. ACP Consulting Group staff accessing Client systems must pass Client security clearance. All data processed under this agreement remains the exclusive property of BankAfrica Group. ACP Consulting Group shall not retain any Client data beyond 30 days post-contract. A Data Processing Agreement (DPA) is attached as Annex F and forms an integral part of this contract.

In case of data breach, ACP Consulting Group must notify BankAfrica within 2 hours of detection and provide a full incident report within 24 hours.

ARTICLE 10 — INTELLECTUAL PROPERTY AND DELIVERABLES

All custom developments, configurations, documentation, training materials, and methodologies created specifically for BankAfrica Group become the property of BankAfrica upon payment of the corresponding invoice. ACP Consulting Group retains ownership of pre-existing tools, frameworks, and accelerators but grants BankAfrica a perpetual, irrevocable, royalty-free license to use them.

ACP Consulting Group may use anonymized program outcomes as case studies with prior written approval from BankAfrica.

ARTICLE 11 — RISK MANAGEMENT

A joint Risk Register shall be maintained and reviewed weekly. Risks rated High or Critical require immediate escalation to Steering Committee. Each party nominates a Risk Owner responsible for mitigation of risks within their domain.

Key program risks identified at contract signing include: regulatory changes affecting DORA compliance timeline, legacy system complexity exceeding initial estimates, key talent retention, and third-party vendor delays. Mitigation plans for each risk are detailed in Annex G.

ARTICLE 12 — PERFORMANCE AND QUALITY

Program performance is measured against KPIs defined in Annex H including: on-time delivery rate (target: 90%), defect density (target: less than 0.5 defects per 100 function points), user adoption rate (target: 85% within 3 months of each go-live), system availability post-go-live (target: 99.9%).

Sustained underperformance on more than 2 KPIs for 3 consecutive months entitles BankAfrica to request a remediation plan within 10 days and, if not satisfied, to terminate the underperforming workstream without penalty.

ARTICLE 13 — LIABILITY AND INDEMNIFICATION

ACP Consulting Group's total liability for any claim arising from this agreement shall not exceed the total fees paid in the 12 months preceding the claim. Neither party shall be liable for indirect damages, loss of profit, or consequential damages. ACP Consulting Group shall indemnify BankAfrica against third-party claims arising from intellectual property infringement by ACP deliverables.

ARTICLE 14 — FORCE MAJEURE

Neither party shall be liable for delays caused by events beyond reasonable control including natural disasters, pandemics, war, cyberattacks of national scale, or regulatory changes requiring fundamental program redesign. The affected party must notify the other within 48 hours and propose a recovery plan within 10 business days.

ARTICLE 15 — TERMINATION

Either party may terminate with 90 days written notice at any year-end. Immediate termination is permitted in case of insolvency, material breach unremedied within 30 days, or sustained KPI underperformance as defined in Article 12.

Upon termination, ACP Consulting Group shall deliver all work products, documentation, and access credentials within 15 days. BankAfrica shall pay for all completed and accepted work. A transition plan shall be agreed within 10 days of termination notice.

ARTICLE 16 — CONFIDENTIALITY

Both parties agree to maintain strict confidentiality of all information exchanged for 7 years post-contract. This obligation survives contract termination. Confidential information includes but is not limited to: customer data, financial results, technology architecture, business strategy, and pricing. Permitted disclosures include regulatory requirements and court orders.

ARTICLE 17 — AMENDMENTS

This agreement may only be amended in writing signed by authorized representatives of both parties. Annual budget adjustments within 15% may be approved by the Steering Committee. Changes to scope, timeline, or budget beyond 15% require CEO-level approval.

ARTICLE 18 — GOVERNING LAW AND DISPUTE RESOLUTION

This agreement is governed by French law. The parties commit to good-faith negotiation for 30 days before initiating formal dispute resolution. Unresolved disputes shall be submitted to ICC arbitration in Paris, conducted in French, with a panel of 3 arbitrators. The arbitration award is final, binding, and enforceable in all jurisdictions.

Signed in Paris, June 15, 2024

For ACP Consulting Group SAS

Jean-Pierre Martin, CEO Claire Fontaine, Chief Delivery Officer

For BankAfrica Group SA

Abdellah Rachidi, CEO Thomas Leblanc, CIO